

An Act

ENROLLED SENATE
BILL NO. 1810

By: Weaver of the Senate

and

West (Tammy) of the House

An Act relating to human trafficking; amending 21 O.S. 2021, Section 748, as last amended by Section 18 of Enrolled Senate Bill No. 1627 of the 2nd Session of the 60th Oklahoma Legislature, which relates to human trafficking; requiring admissibility of certain expert testimony; amending 74 O.S. 2021, Sections 18p-1, as amended by Section 2, Chapter 453, O.S.L. 2024, 18p-3, 18p-4, 18p-5, 18p-6, 18p-7, and 18p-8 (74 O.S. Supp. 2025, Section 18p-1), which relate to domestic violence and sexual assault programs and services; modifying definition; authorizing Attorney General to enter into agreements for services for victims of human trafficking; providing for confidentiality of certain information; authorizing human trafficking shelters to provide certain services; expanding certain telephone communication service to victims of human trafficking; requiring Attorney General to promulgate rules for certification of human trafficking programs and services; requiring certification of certain shelters and programs by the Attorney General; authorizing Attorney General or district attorney to bring certain actions; authorizing Attorney General to collect certain information; updating statutory language; and providing an effective date.

SUBJECT: Human trafficking

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 748, as last amended by Section 18 of Enrolled Senate Bill No. 1627 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

Section 748. A. As used in ~~Sections 748~~ this section and Section 748.2 of this title:

1. "Coercion" means compelling, forcing, or intimidating a person to act by:
 - a. threats of harm or physical restraint against any person,
 - b. any act, scheme, plan, or pattern intended to cause a person to believe that performing, or failing to perform, an act would result in serious physical, financial, or emotional harm or distress to or physical restraint against any person,
 - c. the abuse or threatened abuse of the law or legal process,
 - d. knowingly destroying, concealing, removing, confiscating, or possessing any actual or purported passport, labor or immigration document, or other government identification document, including, but not limited to, a driver license or birth certificate, of another person,
 - e. facilitating or controlling a person's access to any addictive or controlled substance other than for legal medical purposes,
 - f. blackmail,
 - g. demanding or claiming money, goods, or any other thing of value from or on behalf of a prostituted person where such demand or claim arises from or is directly related to the act of prostitution,

- h. determining, dictating, or setting the times at which another person will be available to engage in an act of prostitution with a third party,
- i. determining, dictating, or setting the places at which another person will be available for solicitation of, or to engage in, an act of prostitution with a third party, or
- j. determining, dictating, or setting the places at which another person will reside for purposes of making such person available to engage in an act of prostitution with a third party;

2. "Commercial sex" means any form of commercial sexual activity such as sexually explicit performances, prostitution, participation in the production of pornography, performance in a strip club, or exotic dancing or display;

3. "Debt bondage" means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined;

4. "Human trafficking" means modern-day slavery that includes, but is not limited to, extreme exploitation and the denial of freedom or liberty of an individual for purposes of deriving benefit from that individual's commercial sex act or labor;

5. "Human trafficking for labor" means:

- a. recruiting, enticing, harboring, maintaining, transporting, providing, or obtaining, by any means, another person through deception, force, fraud, threat, or coercion or for purposes of engaging the person in labor, or
- b. benefiting, financially or by receiving anything of value, from participation in a venture that has engaged in an act of trafficking for labor;

6. "Human trafficking for commercial sex" means:

- a. recruiting, enticing, harboring, maintaining, transporting, providing, or obtaining, by any means, another person through deception, force, fraud, threat, or coercion for purposes of engaging the person in a commercial sex act,
- b. recruiting, enticing, harboring, maintaining, transporting, providing, purchasing, or obtaining, by any means, a minor for purposes of engaging the minor in a commercial sex act, or
- c. benefiting, financially or by receiving anything of value, from participating in a venture that has engaged in an act of trafficking for commercial sex;

7. "Legal process" means the criminal law, the civil law, or the regulatory system of the federal government, any state, territory, district, commonwealth, or trust territory therein, and any foreign government or subdivision thereof and includes legal civil actions, criminal actions, and regulatory petitions or applications;

8. "Minor" means an individual under eighteen (18) years of age; and

9. "Victim" means a person against whom a violation of any provision of this section has been committed.

B. It shall be unlawful to knowingly engage in human trafficking.

C. 1. Any person violating the provisions of this section shall, upon conviction, be guilty of a Class A2 felony offense punishable by a fine not more than One Hundred Thousand Dollars (\$100,000.00), by imprisonment in the custody of the Department of Corrections for a term ~~of~~ not less than five (5) years or for life, ~~or by a fine of not more than One Hundred Thousand Dollars (\$100,000.00),~~ or by both such fine and imprisonment.

2. Any person violating the provisions of this section where the victim of the offense is under eighteen (18) years of age at the time of the offense shall, upon conviction, be guilty of a Class A2 felony offense punishable by a fine not more than Two Hundred Fifty Thousand Dollars (\$250,000.00), by imprisonment in the custody of the Department of Corrections for a term ~~of~~ not less than ten (10) years, for life, or for life without parole, ~~or by a fine of not more than Two Hundred Fifty Thousand Dollars (\$250,000.00),~~ or by both such fine and imprisonment.

3. The court shall also order the defendant to pay restitution to the victim as provided in Section 991f of Title 22 of the Oklahoma Statutes. In addition, the court shall require the defendant to pay for a psychological evaluation to determine the extent of counseling necessary for the human trafficking victim and any necessary psychological counseling deemed necessary to rehabilitate the victim. Such evaluations and counseling may be performed by psychiatrists, psychologists, licensed professional counselors, or social workers.

4. If the person is convicted of human trafficking, the person shall serve eighty-five percent (85%) of the sentence before being eligible for parole consideration or any earned credits. The terms of imprisonment specified in this subsection shall not be subject to statutory provisions for suspension, deferral, or probation, or state correctional institution earned credits accruing from and after November 1, 1989, except for the achievement earned credits authorized by subsection H of Section 138 of Title 57 of the Oklahoma Statutes. To qualify for such achievement earned credits, such inmates must also be in compliance with the standards for Class level 2 behavior, as defined in subsection D of Section 138 of Title 57 of the Oklahoma Statutes.

D. It is an affirmative defense to prosecution for a criminal, youthful offender, or delinquent offense that, during the time of the alleged commission of the offense, the defendant or alleged youthful offender or delinquent was a victim of human trafficking.

E. The consent of a victim to the activity prohibited by this section shall not constitute a defense.

F. Lack of knowledge of the age of the victim shall not constitute a defense to the activity prohibited by this section with respect to human trafficking of a minor.

G. In an action in a court of this state, if a party offers evidence of human trafficking, testimony of an expert witness including, but not limited to, the effect of such human trafficking on the beliefs, behavior, and perception of the person being trafficked shall be admissible as evidence.

SECTION 2. AMENDATORY 74 O.S. 2021, Section 18p-1, as amended by Section 2, Chapter 453, O.S.L. 2024 (74 O.S. Supp. 2025, Section 18p-1), is amended to read as follows:

Section 18p-1. A. There is hereby created within the Office of the Attorney General a Victims Services Unit.

B. The duty of the ~~Unit~~ unit is to provide services for persons who require domestic violence, human trafficking, or sexual assault services through a domestic violence, human trafficking, or sexual assault program.

C. As used in this act, "domestic violence program", "human trafficking program", or "sexual assault program" means an agency, organization, facility, or person that offers, provides or engages in the offering of any shelter, residential services or support services to:

1. Victims or survivors of domestic abuse as defined in Section 60.1 of Title 22 of the Oklahoma Statutes, any dependent children of such victim or survivor, and any other member of the family or household of such victim or survivor;

2. Victims or survivors of sexual assault;

3. Persons who are homeless as a result of domestic abuse or sexual assault or both domestic abuse and sexual assault; ~~and~~

4. Victims of stalking; and

5. Victims of human trafficking,

and which may provide other services including, but not limited to, counseling, case management, referrals or other similar services to victims or survivors of domestic abuse, sexual assault, human trafficking, or stalking.

D. As used in this act, "batterers intervention program" or "batterers treatment program" means an agency, organization, facility, or person who offers, provides or engages in the offering of counseling or intervention services to persons who commit domestic abuse.

E. For any county in which there is more than one sexual assault program, domestic violence program, human trafficking program, or batterers intervention program and one or more of the programs operates a shelter program, only the program or programs operating a shelter program shall receive grants or funding from the Victim Services Unit collected pursuant to subsection F of Section 153 of Title 28 of the Oklahoma Statutes and Section 2368.22 of Title 68 of the Oklahoma Statutes.

SECTION 3. AMENDATORY 74 O.S. 2021, Section 18p-3, is amended to read as follows:

Section 18p-3. A. The Attorney General is hereby authorized and directed to enter into agreements and to contract for the shelter and other services that are needed for victims of domestic abuse, sexual assault, human trafficking, or batterers intervention programs. Any domestic violence, sexual assault, human trafficking, or batterers intervention program providing services pursuant to certification by the Attorney General or a contract or subcontract with the Attorney General and receiving funds from the Attorney General or any contractor with the Attorney General shall be subject to the provisions of the administrative rules of the Attorney General.

B. 1. Except as otherwise provided by paragraph 3 of this subsection, the case records, case files, case notes, client records, or similar records of a domestic violence, human trafficking, or sexual assault program certified by the Attorney General or of any employee or trained volunteer of a program regarding an individual who is residing or has resided in such program or who has otherwise utilized or is utilizing the services

of any domestic violence or sexual assault program or counselor shall be confidential and shall not be disclosed.

2. For purposes of this subsection, the term "client records" shall include, but not be limited to, all communications, records, and information regarding clients of domestic violence and sexual assault programs.

3. The case records, case files, or case notes of programs specified in paragraph 1 of this subsection shall be confidential and shall not be disclosed except with the written consent of the individual, or in the case of the individual's death or disability, of the individual's personal representative or other person authorized to sue on the individual's behalf or by court order for good cause shown by the judge in camera.

C. The district court shall not order the disclosure of the address of a domestic violence shelter, the location of any person seeking or receiving services from a domestic violence or sexual assault program, or any other information which is required to be kept confidential pursuant to subsection B of this section.

D. The home address, personal telephone numbers and social security number of board members, staff and volunteers of certified domestic violence and sexual assault programs shall not be construed to be open records pursuant to the Oklahoma Open Records Act.

SECTION 4. AMENDATORY 74 O.S. 2021, Section 18p-4, is amended to read as follows:

Section 18p-4. A. As used in this section, "minor mother" means an unemancipated female under ~~the age of~~ eighteen (18) years of age who is pregnant or the biological parent of any child.

B. A domestic violence or human trafficking shelter facility may provide shelter and care to a minor mother, who is the victim of domestic abuse or human trafficking or is seeking relief from domestic abuse for herself or on behalf of any of her children or both herself and any of her children.

C. A domestic violence or human trafficking shelter facility may provide shelter or care only during an emergency constituting an

immediate danger to the physical health or safety of the minor mother or her child or both the minor mother and any of her children. Such shelter or care shall not extend beyond thirty (30) days unless the facility receives an order issued by the court to continue such services or the parent or guardian of the minor mother consents to such services.

D. The provisions of Section 856 of Title 21 of the Oklahoma Statutes shall not apply to any domestic violence or human trafficking shelter facility and any person operating such facility who in good faith is providing shelter and care pursuant to the provisions of this section to a minor mother and any of her children who is a runaway from her parent or legal guardian.

E. The emergency custody hearing provided for in Section 1-4-202 of Title 10A of the Oklahoma Statutes shall be provided for a minor mother who is seeking relief from domestic abuse for herself or on behalf of any of the her children.

SECTION 5. AMENDATORY 74 O.S. 2021, Section 18p-5, is amended to read as follows:

Section 18p-5. The Office of the Attorney General shall be responsible for the development, maintenance and operation of a twenty-four-hour statewide telephone communication service for the victims of rape, forcible sodomy, human trafficking, and domestic violence. The purpose of the service is to provide information to such victim regarding any immediate action which should be taken by the victim, the social services available, and the legal rights and remedies of the victim.

SECTION 6. AMENDATORY 74 O.S. 2021, Section 18p-6, is amended to read as follows:

Section 18p-6. A. Effective July 1, 2005, all administrative rules promulgated by the Department of Mental Health and Substance Abuse Services relating to domestic violence and sexual assault programs shall be transferred to and become a part of the administrative rules of the Office of the Attorney General. The Office of Administrative Rules in the Secretary of State's office shall provide adequate notice in the Oklahoma Register of the transfer of such rules, and shall place the transferred rules under

the Oklahoma Administrative Code section of the Attorney General. Such rules shall continue in force and effect as rules of the Office of the Attorney General from and after July 1, 2005, and any amendment, repeal or addition to the transferred rules shall be under the jurisdiction of the Attorney General.

B. The Attorney General shall adopt and promulgate rules and standards for certification of batterers intervention, human trafficking, and domestic violence programs and for private facilities and organizations which offer domestic violence, human trafficking, and sexual assault services in this state. These facilities shall be known as "certified domestic violence shelters" ~~or~~, "certified domestic violence programs" ~~or~~, "certified sexual assault programs" ~~or~~, "certified treatment programs for batterers", "certified human trafficking shelters", or "certified human trafficking programs", as applicable.

C. Applications for certification as a certified domestic violence shelter, domestic violence program, human trafficking shelter, human trafficking program, sexual assault program or treatment program for batterers, pursuant to the provisions of this section, shall be made to the Office of the Attorney General on prescribed forms. The Attorney General may certify the shelter or program for a period of three (3) years subject to renewal as provided in the rules promulgated by the Attorney General. Nothing in this section shall preclude the Office of the Attorney General from making inspection visits to a shelter or program to determine contract or program compliance.

D. Licensed physicians, licensed psychologists, licensed social workers, individual members of the clergy, licensed marital and family therapists, licensed behavioral practitioners, and licensed professional counselors shall be exempt from certification requirements; provided, however, these exemptions shall only apply to individual professional persons in private practice and not to any domestic violence program or sexual assault program operated by such person.

E. Facilities providing services for persons who commit domestic abuse, victims or survivors of domestic abuse or sexual assault, victims or survivors of human trafficking, and any dependent children of such victims or survivors shall comply with

standards promulgated by the Attorney General; provided, that the certification requirements and standards promulgated by the Attorney General shall not apply to programs and services offered by the State Department of Health, the Department of Mental Health and Substance Abuse Services, the Department of Corrections, or the Department of Human Services. The batterers intervention, domestic violence, human trafficking, or sexual assault programs certified pursuant to the provisions of this section shall cooperate with inspection personnel of this state and shall promptly file all reports required by the Attorney General. Failure to comply with rules and standards of the Attorney General shall be grounds for revocation of certification, after proper notice and hearing.

F. The Attorney General is hereby authorized to collect from each applicant the sum of One Hundred Fifty Dollars (\$150.00) to help defray the costs incurred in the certification process.

SECTION 7. AMENDATORY 74 O.S. 2021, Section 18p-7, is amended to read as follows:

Section 18p-7. A. The Attorney General or any district attorney, in such person's discretion, may bring an action for an injunction against any batterers intervention, domestic violence program, human trafficking program, or sexual assault program found to be in violation of the provisions of this title or of any order or determination of the Attorney General.

B. In any action for an injunction brought pursuant to this section, any findings of the Attorney General or district attorney, after hearing and due notice, shall be prima facie evidence of the facts found therein.

SECTION 8. AMENDATORY 74 O.S. 2021, Section 18p-8, is amended to read as follows:

Section 18p-8. A. The Office of the Attorney General shall have the authority to collect information sufficient to meet its responsibilities related to oversight, management, evaluation, performance improvement and auditing of domestic violence, human trafficking, and sexual assault services and combating and preventing domestic violence and sexual assault in this state.

B. The individual forms, computer and electronic data, and other forms of information collected by and furnished to the Attorney General shall be confidential and shall not be public records as defined in the Oklahoma Open Records Act.

C. Except as otherwise provided by state and federal confidentiality laws, identifying information shall not be disclosed and shall not be used for any public purpose other than the creation and maintenance of anonymous datasets for statistical reporting and data analysis.

SECTION 9. This act shall become effective in accordance with the provisions of Section 58 of Article V of the Oklahoma Constitution.

Passed the Senate the 17th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____